



United States
Attorney's Office
District of Connecticut



Hartford Substance Abuse Counselor Sentenced to 27 Months in Prison for Health Care Fraud Schemes

Monday, February 3, 2025

For Immediate Release

U.S. Attorney's Office, District of
Connecticut

Marc H. Silverman, Acting United States Attorney for the District of Connecticut, today announced that on January 31, 2025, THELMA "WENDY" EPPS, 60, of Hartford, was sentenced by U.S. District Judge Kari A. Dooley in Bridgeport to 27 months of imprisonment, followed by three years of supervised release, for health care fraud.

According to court documents and statements made in court, Epps was a Licensed Alcohol and Drug Abuse Counselor (LADC) with an office located at 330 Main Street in Hartford. In April 2013, she enrolled as a participating provider in the Connecticut Medicaid program along with an entity affiliated with Epps called *Miracles to Destiny LLC*. In July 2018, the Medicaid program suspended Epps from participating as a provider in the program based on a finding of a credible allegation of fraud. Medicaid told Epps that any attempt to circumvent her suspension by submitting claims for services performed by Epps or *Miracles to Destiny LLC* through other agencies or other billing numbers would result in termination of her provider agreement.

In 2019, Epps entered into an agreement with Dennis Tomczak, a Connecticut LADC who was a participating provider in Medicaid. Epps and Tomczak agreed that Tomczak would bill Medicaid using his Medicaid provider number for psychotherapy counseling services purportedly provided by Epps. These claims falsely represented that Tomczak had personally provided the services. In return for Tomczak billing the services, Epps agreed to pay Tomczak 25 percent of the amount Medicaid paid Tomczak. Between approximately April 2019 and November 2022, Medicaid paid Tomczak \$330,547.71 for fraudulent claims for services purportedly provided by Epps that were billed under Tomczak's provider number.

At some point during their scheme, Tomczak expressed concerns to Epps about the number and frequency of services that Epps told Tomczak she was providing. At about this time, Epps entered into a

similar agreement with Shawn Tyson, a LADC in Connecticut, whereby Tyson would use his Medicaid provider number to submit claims to Medicaid for services Epps purportedly provided to Medicaid clients.

In November 2019, Epps assisted Tyson with the process of enrolling Tyson as a participating provider in Medicaid. Tyson's provider application listed the location at which Tyson would provide services as 330 Main Street, Third Floor, in Hartford, the location of Epps's and *Miracles to Destiny LLC*'s office. Once Tyson was enrolled as a Medicaid provider, Tyson provided Epps with his login information to the online portal for submitting claims to Medicaid, which Epps then used to submit claims. For a brief period before Tyson was enrolled as a Medicaid provider, unbeknownst to Tomczak, Epps submitted claims through Tomczak's provider number for services purportedly provided by Tyson, by representing to Tomczak that she had performed these services. Medicaid paid Tomczak a total of \$7,879.40 for these services.

During the scheme involving Epps and Tyson, Tyson would provide Epps the names of Medicaid patients and dates that Tyson purportedly provided psychotherapy counseling services to the patients, and Epps would then bill Medicaid for these services using Tyson's provider number. Epps would also submit claims using Tyson's provider number for services she purportedly provided to Medicaid patients. These claims falsely represented that Tyson had personally provided the services to the patients.

Epps and Tyson submitted and caused to be submitted claims for hundreds of thousands of dollars of psychotherapy services that neither Epps nor Tyson had actually provided to Medicaid clients. When Epps warned Tyson that he should not bill Medicaid for having provided psychotherapy to patients on holidays, such as July 4 and Thanksgiving, Tyson would typically change the dates of services and resubmit the list of services to Epps.

Medicaid paid Tyson \$663,081.32 for claims that falsely represented that Tyson had personally provided services, or falsely represented that services had been provided when, in fact, they were not provided at all.

Judge Dooley ordered Epps to pay \$1,001,058.43 in restitution to the Connecticut Medicaid program.

On November 8, 2024, Epps pleaded guilty to health care fraud. Epps, who is released on a \$50,000 bond, is required to report to prison on March 3.

[Tomczak](#) and [Tyson](#) pleaded guilty to related charges and await sentencing.

This investigation was conducted by the U.S. Department of Health and Human Services, Office of the Inspector General (HHS-OIG) and the Federal Bureau of Investigation, with the assistance of the Connecticut Department of Social Services. The case was prosecuted by Assistant U.S. Attorney David J. Sheldon and Auditor Susan Spiegel.

The U.S. Attorney's Office, Connecticut Chief State's Attorney's Office, and Connecticut Attorney General's Office meet regularly as part of The Medicaid Fraud Working Group. The Working Group also includes representatives from the Connecticut Department of Social Services; the Connecticut

Department of Public Health; the Drug Control Division of the Connecticut Department of Consumer Protection; the Office of the Inspector General of the U.S. Department of Health and Human Services, and the FBI. The Working Group reviews pending issues and cases, identifies trends that might indicate fraudulent activity, and coordinates efforts for maximum results.

People who suspect health care fraud are encouraged to report it by calling 1-800-HHS-TIPS.

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